

SYNTHETIC ENTERPRISE SERVICES AND TECHNOLOGY FRAMEWORK AGREEMENT

TEST ARTIFACT ONLY — NOT FOR EXECUTION OR LEGAL USE

This Synthetic Enterprise Services and Technology Framework Agreement (this "**Agreement**") is entered into as of [EXECUTION DATE] (the "**Execution Date**") and is stated to be effective as of [EFFECTIVE DATE] (the "**Effective Date**"), by and among:

1. **Asterion Global Holdings Pte. Ltd.**, a company incorporated under the laws of Singapore, having its registered office at 8 Marina View, #21-00 Asia Square Tower 1, Singapore 018960, email: legal@asterionholdings.example ("**Asterion Parent**");
2. **Asterion Digital India Private Limited**, a company incorporated under the laws of India, having its registered office at 14th Floor, Tower B, Embassy TechVillage, Outer Ring Road, Devarabeesanahalli, Bengaluru, Karnataka 560103, India, email: contracts-india@asteriondigital.example ("**Asterion India**");
3. **Northbridge Retail Platforms, Inc.**, a Delaware corporation, having its principal place of business at 500 Market Street, Wilmington, Delaware 19801, United States, email: legal@northbridge.example ("**Customer**");
4. **Northbridge Commerce Europe GmbH**, a company organized under the laws of Germany, having its registered office at Friedrichstraße 88, 10117 Berlin, Germany, email: procurement-eu@northbridge.example ("**Customer Affiliate**");
5. **QuellStack Systems Limited**, a company incorporated under the laws of England and Wales, having its registered office at 22 Bishopsgate, London EC2N 4BQ, United Kingdom, email: legal@quellstack.example ("**Prime Vendor**"); and
6. **VerityCloud Managed Services LLP**, a limited liability partnership organized under the laws of India, having its principal office at 7th Floor, Cyber Pearl, Hitech City, Hyderabad, Telangana 500081, India, email: notices@veritycloud.example ("**Subcontractor**").

Asterion Parent, Asterion India, Customer, Customer Affiliate, Prime Vendor, and Subcontractor are referred to individually as a "**Party**" and collectively as the "**Parties**."

RECITALS

- A. Customer and its Affiliates wish to obtain certain cloud-enabled implementation, support, integration, maintenance, analytics, and managed services for the benefit of Customer's retail and e-commerce operations.
- B. Asterion Parent and Asterion India provide enterprise software, implementation services, and related professional services, directly and through approved subcontractors.
- C. Prime Vendor has agreed to provide certain hosting, migration, middleware, and support components in support of the Services.

D. Subcontractor may provide selected support services, field services, and reporting services as further described in Exhibit B and Schedule 4, if any.

E. The Parties intend this Agreement to establish a multi-party framework for the ordering, delivery, governance, support, and management of the Services and Deliverables.

For good and valuable consideration, the receipt and sufficiency of which are acknowledged, the Parties agree as follows:

1. DEFINITIONS AND INTERPRETATION

1.1 Defined Terms

For purposes of this Agreement, the following terms have the meanings set out below:

- (a) "**Acceptance**" means Customer's written confirmation that a Deliverable conforms in all material respects to the applicable Acceptance Criteria, and includes deemed acceptance under Section 9.6.
- (b) "**Acceptance Criteria**" means the criteria described in an applicable Statement of Work, Work Order, Service Order, Schedule 2, or other agreed document, as applicable.
- (c) "**Affiliate**" means, with respect to a Party, any entity that directly or indirectly controls, is controlled by, or is under common control with that Party, where "control" means ownership of more than fifty percent (50%) of the voting interests or the power to direct management and policies.
- (d) "**Agreement Data**" means data arising under this Agreement, including Operational Data and Billing Data.
- (e) "**Applicable Law**" means all laws, statutes, regulations, directives, ordinances, orders, judgments, decrees, and regulatory requirements applicable to a Party's performance under this Agreement, including, where applicable, the Information Technology Act, 2000 (India), the Digital Personal Data Protection Act, 2023 (India), the UK GDPR, the EU GDPR, the California Consumer Privacy Act of 2018, and ISO/IEC 27001-related control obligations to the extent contractually adopted.
- (f) "**Authorized User**" means an employee, contractor, or representative of Customer or a Customer Affiliate authorized to access or use the Services.
- (g) "**Business Day**" means a day other than a Saturday, Sunday, or public holiday in Mumbai, Bengaluru, London, New York, and Berlin.
- (h) "**Change Control Procedure**" means the procedure set out in Schedule 3.
- (i) "**Change Request**" means a written request to modify the scope, timing, assumptions, Charges, Deliverables, or Services.
- (j) "**Charges**" means all fees, charges, reimbursable costs, taxes other than Excluded Taxes, and other amounts payable under this Agreement or any SOW.

(k) "**Claim**" means any claim, demand, suit, proceeding, investigation, action, or cause of action.

(l) "**Confidential Information**" means all non-public information disclosed by or on behalf of a Party, whether oral, visual, written, electronic, or in any other form, including business, technical, financial, security, product, roadmap, personnel, commercial, and customer information, but excluding Excluded Information.

(m) "**Customer Data**" means all data, records, files, content, personal data, and information submitted to, processed by, stored in, generated through, or otherwise made available to the Services by or on behalf of Customer or any Customer Affiliate.

(n) "**Customer Systems**" means Customer's and Customer Affiliates' networks, systems, software, hardware, environments, APIs, and related infrastructure.

(o) "**Data Incident**" means any actual or reasonably suspected unauthorized access to, acquisition of, disclosure of, alteration of, loss of, destruction of, or inability to access Customer Data.

(p) "**Deliverable**" means any report, configuration, interface, software component, customization, document, training material, migration output, or other work product to be delivered under this Agreement or an SOW.

(q) "**Disclosing Party**" means a Party that discloses Confidential Information.

(r) "**Dispute**" means any dispute, controversy, or claim arising out of or relating to this Agreement, including any question regarding its existence, validity, interpretation, performance, breach, or termination.

(s) "**Documentation**" means the user manuals, technical manuals, operating guides, training guides, implementation guides, and other written materials made available by or on behalf of Provider relating to the Services.

(t) "**Effective Date**" means the date first written above, unless otherwise stated in a Schedule or unless this Agreement became effective on a prior transition date.

(u) "**Excluded Taxes**" means taxes based on a Party's net income, franchise taxes, and taxes on employment.

(v) "**Force Majeure Event**" means an event beyond a Party's reasonable control, including natural disaster, flood, fire, war, terrorism, epidemic, pandemic, strike, lockout, labor dispute, internet outage, utility failure, cyber incident by third parties, governmental action, or interruption in supply chain.

(w) "**Good Industry Practice**" means the exercise of skill, diligence, prudence, efficiency, foresight, and judgment that would reasonably be expected from a skilled and experienced provider of services similar to the Services.

(x) "**Implementation Services**" means the implementation, integration, configuration, migration, testing, training, and related services described in an SOW.

(y) "**Initial Term**" means the period described in Section 3.1.

- (z) "**Intellectual Property Rights**" means patents, inventions, copyrights, database rights, trademarks, trade names, logos, domain names, rights in know-how, trade secrets, moral rights, and all similar proprietary rights, whether registered or unregistered.
- (aa) "**Losses**" means losses, liabilities, damages, costs, charges, penalties, fines, and expenses, including reasonable attorneys' fees.
- (bb) "**Managed Services**" means the ongoing monitoring, support, maintenance, troubleshooting, service desk, reporting, and related operational services described in Schedule 2.
- (cc) "**Order Form**" means an order, statement of work, purchase order, service order, or other ordering document executed by the applicable Parties and referencing this Agreement.
- (dd) "**Personal Data**" means any information relating to an identified or identifiable natural person, or as otherwise defined under Applicable Law.
- (ee) "**Prime Vendor Services**" means the hosting, middleware, migration, and related services performed by Prime Vendor.
- (ff) "**Receiving Party**" means a Party that receives Confidential Information.
- (gg) "**Renewal Term**" means each renewal period described in Section 3.2.
- (hh) "**Sanctions Laws**" means economic or financial sanctions laws administered by India, the United Nations, the United Kingdom, the European Union, Singapore, or the United States.
- (ii) "**Security Measures**" means the technical and organizational security measures described in Schedule 6.
- (jj) "**Service Credits**" means the credits, if any, described in Schedule 2 for specified service level failures.
- (kk) "**Service Levels**" means the service levels, uptime commitments, response times, and resolution targets set out in Schedule 2.
- (ll) "**Services**" means the Implementation Services, Managed Services, Prime Vendor Services, and any other services performed under this Agreement or an SOW.
- (mm) "**Statement of Work**" or "**SOW**" means a statement of work entered into under this Agreement.
- (nn) "**Subcontractor Personnel**" means employees, agents, temporary staff, and contractors of Subcontractor engaged in performance of the Services.
- (oo) "**Support Window**" means the hours set out in Schedule 2 during which support services are available.
- (pp) "**Term**" means the Initial Term and any Renewal Terms.
- (qq) "**Transition Assistance**" means the termination and exit support services described in Section 30.

(rr) "**VAT**" means value added tax, goods and services tax, sales tax, use tax, or similar indirect tax.

(ss) "**Work Product**" means all Deliverables, reports, records, configurations, developments, analyses, and other materials created, conceived, authored, or reduced to practice in connection with this Agreement, excluding Background Technology.

(tt) "**Background Technology**" means any technology, tools, templates, methodologies, know-how, software, utilities, inventions, materials, or Intellectual Property Rights owned or developed by a Party independently of this Agreement.

(uu) "**Documentation**" means all manuals, operating instructions, release notes, and technical specifications relating to the Services.

(vv) "**Business Continuity Plan**" means the documented business continuity and disaster recovery plans maintained by the relevant service provider.

(ww) "**Customer Materials**" means materials, systems, branding, specifications, and content provided by Customer or a Customer Affiliate.

(xx) "**Regulator**" means any governmental, statutory, judicial, quasi-judicial, supervisory, administrative, tax, law enforcement, or regulatory authority.

(yy) "**Milestone Date**" means a milestone date set out in an applicable SOW, Schedule 1, or implementation plan.

(zz) "**Critical Incident**" means a Severity 1 incident causing complete production outage of a material Service.

1.2 Interpretation

In this Agreement, unless the context otherwise requires:

(a) references to Sections, Schedules, Exhibits, Annexures, Appendices, and Attachments are to sections, schedules, exhibits, annexures, appendices, and attachments of or to this Agreement;

(b) headings are for convenience only and do not affect interpretation;

(c) references to a person include an individual, company, corporation, partnership, limited liability partnership, trust, unincorporated organization, or governmental authority;

(d) the words "include," "including," and similar expressions are deemed to be followed by "without limitation";

(e) references to writing include email, except where this Agreement expressly requires signature or hard copy delivery;

(f) any reference to a statute includes modifications, re-enactments, subordinate legislation, and consolidations of that statute;

(g) where an obligation is imposed on more than one Party, that obligation is joint and several, unless this Agreement states otherwise or unless the context requires allocation

among the relevant service providers;

(h) in the event of conflict between this Agreement and an SOW, the SOW prevails except to the extent this Agreement prevails under Section 1.3.

1.3 Order of Precedence

In the event of inconsistency, the following order of precedence applies: (i) the Order Form; (ii) the SOW; (iii) the body of this Agreement; (iv) Schedule 2; (v) Schedule 6; (vi) any Attachment; and (vii) any Purchase Order issued by Customer, except that any data protection addendum will prevail over this Agreement with respect to Personal Data processing.

2. APPOINTMENT AND SCOPE

2.1 Appointment

Customer appoints Asterion Parent and Asterion India as non-exclusive providers of the Services, and Asterion Parent and Asterion India accept such appointment, subject to the terms of this Agreement.

2.2 Prime Vendor Role

Asterion Parent may engage Prime Vendor to perform Prime Vendor Services, provided that Asterion Parent remains responsible for those services except to the extent otherwise stated in Schedule 5.

2.3 Subcontractor Role

Asterion India may engage Subcontractor to perform support, reporting, and field services, subject to Section 21 and Schedule 4.

2.4 Customer Affiliate Participation

Customer may permit one or more Customer Affiliates to receive Services under this Agreement. Each Customer Affiliate receiving Services will be bound by the terms of this Agreement to the extent applicable, whether or not that Customer Affiliate executes an SOW.

2.5 No Minimum Commitment

Nothing in this Agreement requires Customer to purchase any minimum volume of Services, except as set out in an Order Form, forecast, or committed capacity plan.

3. TERM

3.1 Initial Term

The Initial Term begins on the Effective Date and continues for three (3) years, unless earlier terminated in accordance with this Agreement.

3.2 Renewal

Upon expiration of the Initial Term, this Agreement will automatically renew for successive one (1) year periods unless a Party gives notice of non-renewal at least ninety (90) days before the end of the then-current Term. A Party may also elect non-renewal by giving thirty (30) days' notice under Section 27.4.

3.3 SOW Survival

Expiration or termination of this Agreement will not automatically terminate any SOW then in force unless the applicable SOW states otherwise.

4. GOVERNANCE

4.1 Governance Committee

Within fifteen (15) days after the Effective Date, the Parties will establish a governance committee comprising at least one representative from Customer, Asterion Parent, Asterion India, Prime Vendor, and, if applicable, Subcontractor.

4.2 Meetings

The governance committee will meet weekly during implementation and monthly thereafter, unless otherwise agreed in the governance calendar set out in Appendix 1.

4.3 Reporting

Asterion India will deliver a written service report to Customer within five (5) Business Days after the end of each calendar month, including service level results, incidents, root cause analysis summaries, staffing updates, open risks, and change activity.

4.4 Escalation Register

The Parties will maintain an escalation register identifying operational, commercial, legal, and executive contacts.

4.5 Review Rights

Customer may request ad hoc reviews of performance, security, compliance, financial controls, and risk management upon reasonable notice.

5. STATEMENTS OF WORK

5.1 Form

Each SOW must identify the applicable Parties, scope, assumptions, Deliverables, Milestone Dates, Charges, dependencies, Acceptance Criteria, and any deviations from this Agreement.

5.2 Execution

An SOW becomes binding when signed by Customer and either Asterion Parent or Asterion India, and where relevant by Prime Vendor, except that Customer Affiliate signature is optional where services are received by a Customer Affiliate.

5.3 Purchase Orders

Customer may issue purchase orders for administrative purposes only. No pre-printed terms on a purchase order will amend this Agreement.

5.4 Forecasts

Customer will provide rolling three (3) month non-binding forecasts for Managed Services volumes and anticipated implementation demand.

6. CUSTOMER OBLIGATIONS

6.1 Cooperation

Customer will provide reasonable cooperation, timely decisions, access to Customer Systems, designated personnel, and necessary information required for performance of the Services.

6.2 Dependencies

Customer will be responsible for dependencies expressly allocated to Customer in the applicable SOW.

6.3 Access

Customer will ensure that Authorized Users use the Services in accordance with the Documentation and Applicable Law.

6.4 Customer Materials

Customer grants to the service providers a non-exclusive, limited, revocable right during the Term to use Customer Materials solely to perform the Services.

6.5 Internal Policies

Customer will communicate to its Authorized Users the relevant acceptable use, security, and access procedures applicable to the Services.

7. SERVICE PROVIDER OBLIGATIONS

7.1 Standard of Performance

Asterion Parent, Asterion India, Prime Vendor, and Subcontractor will perform their respective obligations with due care, skill, diligence, and in accordance with Good Industry Practice.

7.2 Qualified Personnel

Each service provider will assign suitably trained, qualified, and experienced personnel to perform the Services.

7.3 Compliance

Each service provider will comply with Applicable Law, its internal policies relevant to performance, and Customer's reasonable security and site access requirements notified in advance.

7.4 Records

Asterion India will maintain complete and accurate records relating to service performance, incidents, staffing, billing support, subcontracting, training completion, and compliance certifications for at least seven (7) years after creation.

7.5 Continuity

Each operational service provider will maintain and test a Business Continuity Plan and disaster recovery capabilities proportionate to the Services.

7.6 No Harmful Code

Service providers will not knowingly introduce malware, ransomware, worms, Trojan code, or other harmful code into Customer Systems.

8. IMPLEMENTATION SERVICES

8.1 Implementation Plan

Within ten (10) Business Days after execution of the relevant SOW, Asterion India will produce a detailed implementation plan for Customer approval.

8.2 Milestones

Milestone Dates and dependencies will be set out in the applicable SOW or implementation plan.

8.3 Delays

Asterion India will notify Customer promptly, and in any event within two (2) Business Days, upon becoming aware of any matter likely to delay a Milestone Date.

8.4 Testing

The Parties will conduct unit testing, system integration testing, user acceptance testing, and production readiness reviews in accordance with the test plan.

8.5 Training

Asterion India will provide training to Customer personnel as specified in the relevant SOW.

9. ACCEPTANCE

9.1 Submission

Upon completion of a Deliverable, Asterion India will submit the Deliverable for Acceptance.

9.2 Review Period

Customer will have ten (10) Business Days to review and either accept or reject the Deliverable by written notice specifying any non-conformities.

9.3 Rejection

If Customer rejects a Deliverable, Asterion India will correct the identified non-conformities and resubmit the Deliverable within five (5) Business Days or such other period agreed by the Parties.

9.4 Deemed Acceptance

A Deliverable will be deemed accepted if Customer uses it in production, fails to respond within the review period, or otherwise receives material benefit from it.

9.5 Partial Acceptance

Customer may accept separable components of a Deliverable without waiving rights as to the remaining components.

9.6 Final Acceptance

Final Acceptance occurs upon Customer's written notice of Acceptance or deemed acceptance under this Section 8.6.

10. MANAGED SERVICES AND SERVICE LEVELS

10.1 Managed Services

The Managed Services will be provided in accordance with Schedule 2.

10.2 Service Desk

Asterion India will maintain a service desk during the Support Window and for Critical Incidents on a 24x7 basis.

10.3 Incident Management

Asterion India will classify incidents by severity, track incidents through closure, and provide updates at the frequencies set out in Schedule 2.

10.4 Problem Management

Asterion India will perform root cause analysis for Critical Incidents and recurring Severity 2 incidents and deliver written reports within the period stated in Schedule 2.

10.5 Change Management

No material change to the production environment may be implemented without approval in accordance with the Change Control Procedure, except emergency changes reasonably necessary to restore service.

10.6 Service Credits

If Asterion India fails to meet the Service Levels, Customer may claim Service Credits as set out in Schedule 2.

10.7 Chronic Failure

If Service Levels are missed in three (3) months within any rolling six (6) month period, Customer may require a remedial action plan.

11. PRIME VENDOR SERVICES

11.1 Prime Vendor Responsibilities

Prime Vendor will perform the Prime Vendor Services set out in Schedule 5 and any applicable SOW.

11.2 Flow-Down Obligations

Asterion Parent will ensure that Prime Vendor is bound by written obligations no less protective than those applicable to Asterion Parent under Sections 13, 14, 15, 21, 22, and 25.

11.3 Hosting Environment

Prime Vendor will maintain the hosting environment, backup routines, monitoring, patch management, and infrastructure support responsibilities allocated to it.

11.4 Cooperation

Prime Vendor will cooperate with Customer and the other service providers in incident response, service transition, audits, and security reviews.

12. SUBCONTRACTOR SERVICES

12.1 Approval

Except for approved subcontractors listed in Schedule 4, Asterion India will not subcontract material portions of the Services without Customer's prior written consent.

12.2 Responsibility

Asterion India remains responsible for all acts and omissions of Subcontractor and Subcontractor Personnel as if they were Asterion India's own.

12.3 Personnel Controls

Subcontractor will ensure that Subcontractor Personnel are appropriately screened, trained, supervised, and bound by confidentiality obligations.

13. CHARGES AND PAYMENT

13.1 Charges

Customer will pay the Charges set out in each applicable SOW, subject to valid invoice and undisputed amounts only.

13.2 Invoicing

Asterion Parent or Asterion India, as applicable, will invoice Customer monthly in arrears unless an SOW expressly provides for milestone billing or advance fees.

13.3 Payment Terms

Customer will pay undisputed invoices within forty-five (45) days after receipt. Customer Affiliate will pay within thirty (30) days where local law requires shorter terms.

13.4 Invoice Detail

Each invoice must contain the invoice date, invoice number, billing period, applicable SOW reference, service description, Charges by category, taxes, currency, and supporting detail reasonably required by Customer.

13.5 Disputed Amounts

Customer may withhold payment of disputed amounts by giving notice within fifteen (15) Business Days after receipt of the invoice and paying the undisputed balance.

13.6 Late Payment

Undisputed overdue amounts may accrue interest at one percent (1%) per month or the maximum rate permitted by law, whichever is less.

13.7 Taxes

Customer will be responsible for VAT and similar indirect taxes properly chargeable on the Services, excluding Excluded Taxes.

13.8 Set-Off

Customer may set off any amounts owed by the service providers against amounts payable under this Agreement, to the extent permitted by Applicable Law.

14. CHANGE CONTROL

14.1 Change Requests

Either Party may submit a Change Request.

14.2 Impact Assessment

Within five (5) Business Days after receipt of a Change Request, the receiving Party will provide an impact assessment describing scope, assumptions, timeline changes, Charges, risks, and resource implications.

14.3 Approval

No Change Request will be binding unless approved in writing by authorized representatives of the relevant Parties.

14.4 Emergency Changes

Emergency changes may be implemented to address service outages, vulnerabilities, or legal compliance issues, provided that retrospective documentation is completed within two (2) Business Days.

15. CONFIDENTIALITY

15.1 Obligations

Each Receiving Party will protect the Disclosing Party's Confidential Information using at least reasonable care and no less than the care it uses to protect its own confidential information of similar importance.

15.2 Permitted Use

A Receiving Party may use Confidential Information only to perform or receive the benefits of this Agreement.

15.3 Permitted Disclosure

A Receiving Party may disclose Confidential Information to its Affiliates, professional advisers, auditors, insurers, financing sources, and personnel who need to know such information for purposes consistent with this Agreement, provided that such recipients are bound by confidentiality obligations.

15.4 Compelled Disclosure

If a Receiving Party is required by law, regulation, court order, or Regulator to disclose Confidential Information, it will, to the extent legally permitted, give prompt notice to the Disclosing Party and cooperate in seeking protective treatment.

15.5 Exclusions

Confidential Information does not include information that the Receiving Party can demonstrate: (i) is or becomes public through no breach of this Agreement; (ii) was lawfully known to the Receiving Party without restriction before disclosure; (iii) is lawfully received from a third party without duty of confidentiality; or (iv) is independently developed without use of the Disclosing Party's Confidential Information.

15.6 Return or Destruction

Upon request or termination of this Agreement, each Receiving Party will return or securely destroy Confidential Information, except for archival copies retained in routine backups or as required by law.

15.7 Survival

The obligations in this Section 15 survive for five (5) years after termination, except for trade secrets, which survive so long as they remain trade secrets under Applicable Law.

16. DATA PROTECTION AND SECURITY

16.1 Compliance

Each Party will comply with Applicable Law relating to Personal Data and privacy in connection with this Agreement.

16.2 Roles

To the extent the service providers process Personal Data on behalf of Customer, Customer acts as controller or business, and the applicable service provider acts as processor or service provider, as those terms are defined under Applicable Law.

16.3 Processing Instructions

Service providers will process Personal Data only on documented instructions from Customer, except where otherwise required by Applicable Law.

16.4 Security Measures

Service providers will implement and maintain appropriate technical and organizational measures to protect Customer Data and Personal Data against unauthorized or unlawful processing and against accidental loss, destruction, damage, alteration, or disclosure.

16.5 Data Incident Notification

The relevant service provider will notify Customer without undue delay, and in any event within twenty-four (24) hours after becoming aware of a Data Incident affecting Customer Data.

16.6 Assistance

The service providers will provide reasonable assistance to Customer in responding to data subject requests, regulator inquiries, security assessments, and Data Incidents.

16.7 Cross-Border Transfers

Personal Data will not be transferred across borders except in accordance with Applicable Law and any transfer mechanism identified in Schedule 6 or the Data Processing Addendum.

16.8 Audits

Customer may audit data protection and security compliance in accordance with Section 22.

17. INFORMATION SECURITY

17.1 Security Program

Each operational service provider will maintain a written information security program aligned in all material respects with ISO/IEC 27001 or a substantially equivalent framework.

17.2 Access Controls

Access to systems processing Customer Data will be restricted on a least-privilege basis and reviewed regularly.

17.3 Vulnerability Management

Relevant service providers will conduct periodic vulnerability scanning and apply security patches within timeframes appropriate to risk severity.

17.4 Encryption

Customer Data will be encrypted in transit using current industry-standard protocols and at rest where commercially reasonable and technically feasible.

17.5 Logging

The service providers will maintain logs sufficient to support incident response, forensic review, compliance verification, and operational monitoring.

17.6 Penetration Testing

At least annually, the primary hosting and service environments will undergo independent penetration testing, and executive summaries will be made available to Customer upon request.

18. REGULATORY COMPLIANCE

18.1 General

Each Party will comply with anti-bribery, anti-corruption, anti-money laundering, export control, sanctions, tax reporting, labor, and employment laws applicable to its activities under this Agreement.

18.2 Anti-Bribery

No Party will offer, promise, authorize, or provide anything of value to improperly influence any person in connection with this Agreement.

18.3 Sanctions

No Party will knowingly engage in any activity under this Agreement that would cause any other Party to violate Sanctions Laws.

18.4 Modern Slavery

Each service provider will maintain policies and controls reasonably designed to prevent forced labor, child labor, trafficking, and slavery in its operations and supply chain.

18.5 Industry Standards

Where applicable to the Services, the service providers will maintain compliance with the standards referenced in Schedule 7.

19. AUDIT RIGHTS

19.1 Audit Scope

Upon at least fifteen (15) Business Days' prior notice, Customer or its designated auditor may audit the relevant service provider's compliance with this Agreement with respect to security, privacy, invoicing, service levels, subcontracting, and regulatory compliance.

19.2 Frequency

Customer may conduct no more than one (1) routine audit in any twelve (12) month period, except following a Data Incident, material breach, regulator request, or persistent service failure.

19.3 Cooperation

The audited Party will provide reasonable cooperation, access to relevant records, knowledgeable personnel, and responses to follow-up requests.

19.4 Remediation

If an audit identifies non-compliance, the audited Party will promptly prepare and implement a remediation plan at its own cost, unless the audit reveals no material findings.

20. INSURANCE

20.1 Coverage

Each service provider will maintain, at its own expense, insurance customary for services of the type performed under this Agreement, including commercial general liability, professional indemnity/errors and omissions, cyber liability, workers' compensation, and employer liability insurance.

20.2 Minimum Limits

Minimum limits will be as set out in Schedule 8.

20.3 Certificates

Upon request, the relevant service provider will provide certificates of insurance or other reasonable evidence of coverage.

20.4 No Limitation

Insurance does not limit a Party's liability under this Agreement.

21. PERSONNEL AND SUBCONTRACTING

21.1 Personnel Standards

Each service provider will ensure that personnel assigned to the Services possess the qualifications reasonably necessary for their assigned roles.

21.2 Key Personnel

Key Personnel identified in an SOW may not be replaced without Customer's prior consent, except in cases of resignation, illness, misconduct, or other circumstances beyond reasonable control.

21.3 Replacement

Any replacement personnel must have qualifications and experience substantially equivalent to those of the replaced personnel.

21.4 Background Checks

To the extent permitted by Applicable Law, personnel with access to Customer Data or Customer Systems will be subject to background screening appropriate to their role.

22. INTELLECTUAL PROPERTY

22.1 Background Technology

Each Party retains all right, title, and interest in and to its Background Technology.

22.2 Customer Materials

As between the Parties, Customer retains all right, title, and interest in and to Customer Materials and Customer Data.

22.3 Work Product

Subject to payment of the applicable Charges, and except for any service provider Background Technology embedded therein, all right, title, and interest in and to bespoke Work Product specifically created for Customer under an SOW vests in Customer upon creation, and to the extent necessary is hereby assigned by the relevant creating Party to Customer.

22.4 Embedded Technology

To the extent service provider Background Technology is embedded in a Deliverable, the relevant service provider grants Customer a perpetual, worldwide, non-exclusive,

transferable, sublicensable license to use such embedded technology solely as part of the Deliverable and for Customer's internal business purposes.

22.5 Feedback

Customer may provide suggestions, ideas, or feedback regarding the Services. Service providers may use such feedback without restriction and without obligation to Customer.

22.6 Moral Rights

To the extent permitted by Applicable Law, the creating service provider will procure waivers of moral rights in bespoke Work Product.

23. WARRANTIES

23.1 Mutual Warranties

Each Party represents and warrants that: (a) it is duly organized and validly existing under the laws of its jurisdiction of organization; (b) it has full corporate power and authority to enter into and perform this Agreement; and (c) this Agreement constitutes a valid and binding obligation of that Party, enforceable against it in accordance with its terms, subject to applicable insolvency and equitable principles.

23.2 Service Warranties

Asterion Parent and Asterion India warrant that the Services will be performed in a professional and workmanlike manner consistent with Good Industry Practice.

23.3 Conformity Warranty

Asterion India warrants that Deliverables will materially conform to the applicable SOW and Acceptance Criteria for ninety (90) days after Acceptance.

23.4 Malware Warranty

Each operational service provider warrants that it will use commercially reasonable measures to prevent introduction of harmful code into Customer Systems.

23.5 Disclaimer

Except as expressly stated in this Agreement, the Services and Deliverables are provided "as is" and the service providers disclaim all other warranties, whether express, implied, statutory, or otherwise, including implied warranties of merchantability, fitness for a particular purpose, title, and non-infringement.

24. INDEMNITIES

24.1 Service Provider Indemnity

Asterion Parent and Asterion India will indemnify, defend, and hold harmless Customer and Customer Affiliates from and against any third-party Claims and related Losses to the extent arising from: (a) bodily injury, death, or damage to tangible property caused by negligence or willful misconduct of the indemnifying Parties; (b) breach of Section 15, 16, or 18 by the indemnifying Parties; or (c) infringement or misappropriation by the Services or Deliverables of any third-party Intellectual Property Rights.

24.2 Customer Indemnity

Customer will indemnify, defend, and hold harmless the service providers from and against any third-party Claims and related Losses to the extent arising from Customer Materials, Customer's breach of Applicable Law, or use of the Services in violation of this Agreement.

24.3 Process

A Party seeking indemnification will: (a) promptly notify the indemnifying Party of the Claim; (b) allow the indemnifying Party to control the defense and settlement, except that no settlement admitting liability or imposing non-monetary obligations on the indemnified Party may be entered without the indemnified Party's prior written consent; and (c) provide reasonable cooperation at the indemnifying Party's expense.

24.4 IP Remedies

If any Service or Deliverable becomes, or in the indemnifying Party's reasonable opinion is likely to become, the subject of an infringement Claim, the indemnifying Party may, at its option and expense: (i) procure for Customer the right to continue using it; (ii) modify or replace it so it becomes non-infringing without materially degrading functionality; or (iii) terminate the affected Services and refund prepaid fees for the terminated portion.

25. LIMITATION OF LIABILITY

25.1 Exclusion of Certain Damages

Except for excluded matters under Section 25.3, neither Party will be liable to any other Party for any indirect, incidental, consequential, special, punitive, or exemplary damages, or for loss of profit, revenue, goodwill, anticipated savings, business interruption, or loss of data, even if advised of the possibility of such damages.

25.2 General Cap

Except for excluded matters under Section 25.3, each Party's aggregate liability arising out of or relating to this Agreement will not exceed, in the aggregate, an amount equal to one hundred percent (100%) of the Charges paid or payable under this Agreement during the twelve (12) months preceding the event giving rise to liability.

25.3 Excluded Matters

The limitations in this Section 25 do not apply to: (a) fraud or fraudulent misrepresentation; (b) death or personal injury caused by negligence to the extent liability cannot be limited by law; (c) Customer's payment obligations; (d) breach of Section 15 or 16; (e) infringement indemnity obligations under Section 24.1(c); or (f) willful misconduct.

26. NON-SOLICIT AND NON-COMPETE

26.1 Non-Solicit

During the Term and for twelve (12) months thereafter, neither Customer nor the service providers will knowingly solicit for employment any Key Personnel of another Party who were materially involved in the Services, except through general solicitations not specifically targeted.

26.2 Non-Compete

During the Term, Asterion India will not knowingly provide materially similar managed services for the same Customer platform to any direct competitor identified in Schedule 9, solely to the extent permitted by Applicable Law.

27. DISPUTE RESOLUTION

27.1 Executive Escalation

Before commencing formal proceedings, a Party will escalate any Dispute to the governance committee and then to senior executives of the affected Parties.

27.2 Mediation

If the Dispute is not resolved within fifteen (15) Business Days after executive escalation, the Parties will attempt in good faith to resolve it through mediation administered by a mutually agreed mediator in Mumbai, India.

27.3 Arbitration

Any Dispute not resolved by mediation within thirty (30) days will be finally resolved by arbitration under the Rules of the Singapore International Arbitration Centre by three arbitrators, in English.

27.4 Interim Relief

Nothing in this Agreement prevents a Party from seeking interim or injunctive relief from any court of competent jurisdiction to protect Confidential Information, Intellectual Property Rights, or data security.

28. GOVERNING LAW AND JURISDICTION

28.1 Governing Law

This Agreement will be governed by and construed in accordance with the laws of [GOVERNING LAW], excluding its conflict of laws rules.

28.2 Courts

Subject to Section 27, the courts located in [COURT LOCATION] will have exclusive jurisdiction over any matter arising from or relating to this Agreement.

29. TERMINATION

29.1 Termination for Cause

A Party may terminate this Agreement or an affected SOW for material breach by another Party if the breach is not cured within thirty (30) days after written notice describing the breach in reasonable detail.

29.2 Insolvency

A Party may terminate this Agreement immediately upon written notice if another Party: (a) becomes insolvent; (b) enters liquidation, administration, or similar proceedings; (c) ceases business; or (d) makes an assignment for the benefit of creditors.

29.3 Chronic Service Failure

Customer may terminate the affected Services or SOW for chronic service failure if the service providers fail to implement an agreed remedial action plan within a reasonable period following repeated Service Level failures.

29.4 Regulatory Termination

Customer may terminate immediately if continued performance would cause Customer to violate Applicable Law or a binding regulator direction.

29.5 Change of Control

Customer may terminate on ninety (90) days' written notice if Asterion Parent, Asterion India, Prime Vendor, or Subcontractor undergoes a change of control that materially increases risk to Customer.

30. TRANSITION ASSISTANCE

30.1 Exit Support

Upon expiration or termination of this Agreement or an SOW, the relevant service providers will provide Transition Assistance for up to six (6) months, subject to Customer's written request and payment of applicable transition fees as set out in Schedule 10.

30.2 Scope

Transition Assistance includes knowledge transfer, handover of documentation, migration support, reasonable cooperation with replacement providers, and orderly transfer of Customer Data.

30.3 Continued Service

During Transition Assistance, the relevant service providers will continue to perform the applicable Services in accordance with this Agreement, subject to reasonable wind-down planning.

31. EFFECT OF TERMINATION

31.1 Accrued Rights

Termination or expiration will not affect accrued rights, remedies, obligations, or liabilities.

31.2 Return of Property

Each Party will promptly return or, if requested, destroy the other Party's property in its possession or control, subject to legal retention requirements.

31.3 Data Return

Upon termination, the relevant service providers will return Customer Data in a mutually agreed format within thirty (30) days after Customer's request, subject to Section 16 and Schedule 10.

31.4 Payments

Customer will pay all undisputed Charges properly due for Services performed up to the effective date of termination.

32. BUSINESS CONTINUITY AND DISASTER RECOVERY

32.1 Plans

Relevant service providers will maintain and periodically test a Business Continuity Plan and disaster recovery plan appropriate to the criticality of the Services.

32.2 Testing

Summary results of annual tests will be provided to Customer upon request.

32.3 Material Changes

Any material degradation in resilience or disaster recovery capability must be notified to Customer without undue delay.

33. RECORDS AND REPORTING

33.1 Records

Service providers will maintain records sufficient to verify performance, Charges, compliance, and security obligations.

33.2 Reports

Asterion India will deliver monthly, quarterly, and annual reports as reasonably requested by Customer, including KPI trends, incident metrics, staffing changes, major risks, open audit findings, and roadmap updates.

33.3 Regulatory Cooperation

Each Party will reasonably cooperate with information requests from a Regulator relating to the Services, subject to confidentiality and legal restrictions.

34. NOTICES

34.1 Notice Requirements

Any notice under this Agreement must be in writing and delivered by courier, registered post, or email to the applicable contact set out below or as later notified.

34.2 Deemed Receipt

A notice is deemed received: (a) if delivered by courier or by hand, on signature of delivery receipt; (b) if sent by registered post, five (5) Business Days after posting; or (c) if sent by email, at the time of transmission unless the sender receives an automated failure notice.

34.3 Notice Contacts

For Asterion Parent: legal@asterionholdings.example, with copy to generalcounsel@asterionholdings.example.

For Asterion India: contracts-india@asteriondigital.example, with copy to gc-india@asteriondigital.example.

For Customer: legal@northbridge.example, with copy to procurement@northbridge.example.

For Customer Affiliate: procurement-eu@northbridge.example, with copy to legal-emea@northbridge.example.

For Prime Vendor: legal@quellstack.example.

For Subcontractor: notices@veritycloud.example.

35. ASSIGNMENT

35.1 Restrictions

No Party may assign, transfer, charge, subcontract, or otherwise deal in this Agreement, in whole or in part, without the prior written consent of the other materially affected Parties, except as permitted in this Section 35.

35.2 Permitted Assignment

A Party may assign this Agreement without consent to an Affiliate or in connection with a merger, reorganization, sale of substantially all assets, or other change of control, provided that the assignee agrees in writing to be bound by this Agreement.

35.3 Void Transfers

Any attempted assignment in violation of this Section 35 is void.

36. CHANGE OF CONTROL

36.1 Notice

Each Party will notify the other relevant Parties as soon as reasonably practicable of any proposed change of control affecting its performance under this Agreement.

36.2 Review

Following such notice, the non-changing Parties may request information reasonably necessary to assess legal, operational, security, financial, or reputational risk.

37. FORCE MAJEURE

37.1 Relief

A Party will not be liable for delay or failure in performance to the extent caused by a Force Majeure Event, provided that the affected Party: (a) promptly notifies the other relevant Parties; (b) uses reasonable efforts to mitigate the effects; and (c) resumes performance as soon as reasonably practicable.

37.2 Exclusions

Force Majeure Event does not excuse payment obligations except to the extent the inability to perform payment is caused by a broad banking system outage beyond the paying Party's reasonable control.

37.3 Extended Force Majeure

If a Force Majeure Event continues for more than sixty (60) consecutive days and materially affects the Services, Customer may terminate the affected Services on written notice.

38. PUBLICITY

38.1 Restrictions

No Party may issue a press release or public announcement regarding this Agreement without the prior written consent of the other relevant Parties, except where required by Applicable Law or stock exchange rules.

38.2 Customer Name

Service providers may not use Customer's name, logo, or trademarks in marketing materials without Customer's prior written consent.

39. ETHICS AND BUSINESS CONDUCT

39.1 Code of Conduct

Each service provider will maintain and enforce written policies on ethics, anti-bribery, whistleblowing, conflicts of interest, and business conduct.

39.2 Training

Relevant personnel will receive periodic compliance training appropriate to their roles.

40. EXPORT CONTROLS

40.1 Compliance

Each Party will comply with applicable export control and import laws in connection with the transfer of software, technology, data, equipment, and technical assistance under this Agreement.

40.2 Restrictions

No Party will export, re-export, transfer, or provide access to restricted items in violation of Applicable Law.

41. OPEN SOURCE SOFTWARE

41.1 Disclosure

To the extent a Deliverable contains open source software that imposes attribution, notice, source code disclosure, or copyleft obligations, the relevant service provider will identify such software in writing.

41.2 Compliance

The relevant service provider will comply with the license terms applicable to any open source software included in the Services or Deliverables.

42. NON-WAIVER

42.1 Waiver

A failure or delay by a Party to exercise any right or remedy under this Agreement does not constitute a waiver of that right or remedy.

43. SEVERABILITY

43.1 Severability

If any provision of this Agreement is held invalid, illegal, or unenforceable, that provision will be deemed modified to the minimum extent necessary to make it valid and enforceable, and if such modification is not possible, severed, without affecting the remaining provisions.

44. ENTIRE AGREEMENT

44.1 Entire Agreement

This Agreement, together with its Schedules, Exhibits, Annexures, Appendices, Attachments, SOWs, and any data processing addendum, constitutes the entire agreement among the Parties with respect to its subject matter and supersedes all prior or contemporaneous agreements, proposals, understandings, and communications relating to that subject matter.

45. AMENDMENTS

45.1 Amendments

No amendment to this Agreement will be effective unless in writing and signed by authorized representatives of the materially affected Parties.

46. COUNTERPARTS AND ELECTRONIC SIGNATURES

46.1 Counterparts

This Agreement may be executed in counterparts, each of which is deemed an original and all of which together constitute one instrument.

46.2 Electronic Signatures

Signatures delivered by electronic means, including PDF and recognized e-signature platforms, are effective as original signatures to the extent permitted by Applicable Law.

47. FURTHER ASSURANCES

47.1 Further Assurances

Each Party will execute and deliver such further documents and take such further actions as may be reasonably necessary to give full effect to this Agreement.

48. RELATIONSHIP OF THE PARTIES

48.1 Independent Contractors

The Parties are independent contractors. Nothing in this Agreement creates a partnership, joint venture, agency, fiduciary, employment, or franchise relationship among the Parties.

48.2 Authority

No Party has authority to bind another Party except as expressly provided in this Agreement or in a written instrument executed by the Party to be bound.

49. THIRD-PARTY RIGHTS

49.1 No Third-Party Beneficiaries

Except for Customer Affiliates receiving Services and indemnitees under Section 24, a person who is not a Party to this Agreement has no right to enforce any term of this Agreement.

50. SURVIVAL

50.1 Survival

Sections 13 (for amounts accrued prior to termination), 15, 16, 17, 19, 20 (for claims-made periods and evidentiary obligations), 22, 24, 25, 27, 28, 30, 31, 34, 35, 42, 43, 44, 46, 47, 48, 49, and this Section 50 survive expiration or termination of this Agreement.

51. EXECUTION

The Parties have caused this Agreement to be executed by their duly authorized representatives as of the Execution Date.

ASTERION GLOBAL HOLDINGS PTE. LTD.

By: _____

Name: [SIGNATORY NAME]

Title: [SIGNATORY TITLE]

Date: _____

ASTERION DIGITAL INDIA PRIVATE LIMITED

By: _____

Name: [SIGNATORY NAME]

Title: [SIGNATORY TITLE]

Date: _____

NORTHBRIDGE RETAIL PLATFORMS, INC.

By: _____

Name: [SIGNATORY NAME]

Title: [SIGNATORY TITLE]

Date: _____

NORTHBRIDGE COMMERCE EUROPE GMBH

By: _____

Name: [SIGNATORY NAME]

Title: [SIGNATORY TITLE]

Date: _____

QUELLSTACK SYSTEMS LIMITED

By: _____

Name: [SIGNATORY NAME]

Title: [SIGNATORY TITLE]

Date: _____

VERITYCLOUD MANAGED SERVICES LLP

By: _____

Name: [SIGNATORY NAME]

Title: [SIGNATORY TITLE]

Date: _____

SCHEDULE 1

COMMERCIAL SUMMARY

1. Initial implementation fees: [AMOUNT]
2. Monthly managed services fees: [AMOUNT]
3. Service commencement date: [SERVICE COMMENCEMENT DATE]
4. Key Milestone Dates:
 - Solution design sign-off: [DATE]
 - Build completion: [DATE]
 - User acceptance testing completion: [DATE]
 - Production go-live: [DATE]

SCHEDULE 2

SERVICE LEVELS

1. Availability target: [TARGET]
2. Severity 1 response time: [TIME PERIOD]
3. Severity 2 response time: [TIME PERIOD]
4. Root cause analysis for Critical Incidents: within [TIME PERIOD]
5. Service Credits: [SERVICE CREDIT TERMS]

SCHEDULE 3

CHANGE CONTROL PROCEDURE

1. Submission of Change Request.
2. Impact assessment.
3. Approval or rejection.
4. Implementation planning.
5. Documentation update.

SCHEDULE 4

APPROVED SUBCONTRACTORS

1. VerityCloud Managed Services LLP – reporting, L1 support, field coordination.

2. [ADDITIONAL SUBCONTRACTOR] – [SERVICES]

SCHEDULE 5

PRIME VENDOR SERVICES

1. Hosting management.
2. Middleware support.
3. Migration tooling.
4. Backup and restore.

SCHEDULE 6

SECURITY MEASURES

1. Access control.
2. Encryption.
3. Monitoring and logging.
4. Vulnerability management.
5. Incident response.
6. Backup and recovery.

SCHEDULE 7

COMPLIANCE STANDARDS

1. ISO/IEC 27001.
2. SOC 2 Type II.
3. PCI DSS, if applicable.
4. OWASP secure development practices.

SCHEDULE 8

INSURANCE LIMITS

1. Commercial general liability: [AMOUNT]
2. Professional indemnity/errors and omissions: [AMOUNT]
3. Cyber liability: [AMOUNT]

4. Workers' compensation: statutory minimum.

SCHEDULE 9

COMPETITOR LIST

1. [COMPETITOR NAME]
2. [COMPETITOR NAME]

SCHEDULE 10

TRANSITION ASSISTANCE

1. Knowledge transfer activities.
2. Data export format.
3. Transition project governance.
4. Exit fees: [AMOUNT]

APPENDIX 1

GOVERNANCE CALENDAR

1. Weekly implementation meeting.
2. Monthly service review.
3. Quarterly executive review.
4. Annual security review.

EXHIBIT A

FORM OF STATEMENT OF WORK

1. Parties.
2. Scope.
3. Deliverables.
4. Milestones.
5. Acceptance Criteria.
6. Charges.
7. Assumptions.

8. Dependencies.

EXHIBIT B

REPORTING TEMPLATE

1. Service levels.
2. Incidents.
3. Security events.
4. Open risks.
5. Change requests.
6. Billing summary.